



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JUN 29 2001

DOT-E 10618
(FIFTH REVISION)

EXPIRATION DATE: **January 31, 2002**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Boeing Satellite Systems, Inc.
(FORMER GRANTEE: Hughes Space & Communications Company)
Los Angeles, California
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation of rocket motors classed as Division 1.3C having a weight exceeding those specified in the hazardous materials regulations (HMR), when transported by cargo aircraft. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table, Column (9B) in that Rocket motors classed as a Division 1.3C exceed the quantity limitations in the HMR when transported by cargo aircraft.
5. BASIS: This exemption is based on the application of Hughes Space & Communications Company dated January 18, 2000, submitted in accordance § 107.109, and an additional letter from Boeing Satellite Systems, Inc., (formerly Hughes Space & Communications Company) dated June 15, 2001.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Rocket motor*	1.3C	UN0186	N/A

*See the following: Rocket motors, UN0186, described in the table below, classed as Division 1.3C explosives.

STAR MOTOR SERIES\CONTAINER DIM.\MOTOR ASSY DRW\MAX ROCKET MOTOR WT
 "H" "D"

STAR 63 (EX-8910047)	87.63	128	E43359	9500 LB
STAR 27 (EX-8805248)	68.00	61.25	E42002	805 LB
STAR 30 (EX-8805249)	6.25 77.63	61.25	E41623	1485 LB

7. PACKAGING AND SAFETY CONTROL MEASURES: As prescribed in § 173.62 Packing instruction 130.

8. SPECIAL PROVISIONS.

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each cargo aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

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b. Shipments must comply with the following:

1. This exemption authorizes the use of those air carriers who are presently authorized under an exemption to transport Class 1 explosives.
2. Shipments are to originate at Los Angeles, California, destined for Xichang, People's Republic of China or Cayenne, French Guiana.
3. The carrier must conform to the requirements of § 175.320(b) except subparagraph (5) and (7).
4. No other hazardous cargo is authorized aboard the aircraft except as follows:

- a) Detonators, Electric - UN0255 UN Class and Division 1.4B (EX-8801069), Manufactured by Hi-Shear Technology Corp. P/N 26100001, packed in accordance with CA-880263.
- b) Cartridges, Power Device - UN0276 UN Class and Division 1.4C, (EX-9102231, EX-9107232) Manufactured by Hi-Shear Technology Corp.
- c) Battery Powered Equipment - ID8040 Electric Forklift with wet battery installed, secured, and protected from short circuit.
- d) The following materials, packaged in accordance with the passenger aircraft quantity provisions of the ICAO Technical Instructions for the Safe Transport of Dangerous Goods by Air:

Acetone/UN1090/UN Class 3/PG II
Aerosols, Non-flammable, n.o.s./UN1950/
UN Class 2.2
Corrosive Liquid, n.o.s./UN1760/UN Class 8/
PG II
Ethanol/UN1170/UN Class 3/PG II
Flammable liquid, n.o.s./UN1993/UN Class 3/
PG II
Paint/UN1263/UN Class 3/PG II
Paint related material/UN1263/UN Class 3/
PG II
1,1,1-Trichloroethane/UN2831/UN Class 6.1/
PG II

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Isopropanol/UN1219/UN Class 3/PG II
Carbon Dioxide, Solid/UN1845/UN Class 9/
PG III.

- e) Spacecraft prepared for shipment in accordance with DOT-E 11536

5. The cargo must be loaded and secured to prevent movement during transportation as described in Hughes' letters dated November 27, 1991 and March 6, 1998.

6. This exemption does not grant authority to use foreign controlled aerospace or airports outside the United States.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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PO: AM